

	complaint or answer, as the case may be.” (Code Civ. Proc., § 438(h)(1).) A. REQUEST FOR JUDICIAL NOTICE Defendant requests judicial notice of two documents: (1) Certified translation of July 1, 2023 text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract, attached as Exhibit A and (2) Plaintiff's sworn declaration dated October 31, 2025, filed in Orange County Superior Court Case No. 30-2025-01520822-CL-UD-CJC, attached as Exhibit B. The request for judicial notice is DENIED as the Certified translation of July 1, 2023, text messages exchanged between Plaintiff and Defendant, offered to establish the existence and date of the communication containing the exact language that Plaintiff identifies as the alleged breach of contract. This piece of evidence is not something that the Court may take judicial notice of and is not appropriate to consider when determining a motion for judgment on the pleadings. The request for judicial notice is GRANTED as to Plaintiff's declaration filed in Case No. 2025 01520822. “[P]leadings and declarations are records of a court of this state and therefore qualified for permissive judicial notice under Evidence Code section 452, subdivision (d).” (Tucker v. Pacific Bell Mobile Services (2012) 208 Cal.App.4th 201, 219.) B. CAUSES OF ACTION Based on the Court's interpretation of the operative Complaint, the Complaint contains two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. Defendant addresses an emotional distress claim, but based on the Court's reading of the Complaint, it appears that Plaintiff is
--	---

	claiming emotional damages, not asserting a cause of action for intentional infliction of emotional distress. As such, the Court will only address the causes of action for (1) breach of oral contract and (2) promissory and constructive fraud. 1. Breach of Oral Contract a. Statute of Limitations A cause of action for breach of oral contract is subject to a two-year statute of limitations pursuant to Code of Civil Procedure section 339. (Code Civ. Proc., § 339.) “A cause of action for breach of a contract generally accrues upon the alleged breach.” (Spears v. Spears (2023) 97 Cal.App.5th 1294, 1304–1305.) Here, the Court finds that it is unable to determine whether Plaintiff’s cause of action for breach of contract is barred by the statute of limitations based on the allegations in the operative Complaint and the judicially noticeable declaration of Plaintiff. Based on the Complaint and Plaintiff’s declaration, it is not clear when Plaintiff allegedly completed renovations and when Defendant breached the alleged oral contract by failing to pay Plaintiff the bargain for consideration for the renovations. The Complaint does not allege a date that the renovations were completed or when Defendant allegedly breached the oral agreement. The only dates set forth in the Complaint relate to when Plaintiff was injured and when he received an eviction notice from Defendant. Similarly, Plaintiff’s declaration that Defendant filed in support of the motion states: “In 2023, I became sick, required surgery, and was attending school at the same time to establish an
--	---

	independent life. Despite these difficulties, I continued and completed the renovation. After the renovation was finished and the value of the property increased, Plaintiff refused to sell the house.” From this declaration, the Court is only able to discern that Plaintiff was sick, required surgery, and was attending school in 2023. The alleged renovation was completed after these occurrences, but the declaration does not expressly state when the renovation was complete (Plaintiff performance) and when Defendant refused to sell or transfer the promised ownership share (Defendant’s breach). As such, the Court is unable to calculate whether Plaintiff’s breach of oral contract cause of action is barred by the applicable statute of limitations at this stage in the litigation. b. Elements of Breach of Oral Contract “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) “[T]he complaint must indicate on its face whether the contract is written, oral, or implied by conduct.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–459.) Express and implied “contract[s] are identical in that they require a meeting of minds or an agreement [citation].” (Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230.) “Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established.” (Ibid.)
--	--

Moreover, “[i]n order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) “This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Ibid.)

Here, the Complaint sufficiently alleges all elements of a breach of oral contract. Plaintiff alleges that the parties entered into an oral agreement “regarding the renovation, sale, and reinvestment of a residential property.” Specifically, “Plaintiff agreed to perform a complete renovation of the Defendant’s residential property.” Then, “[u]pon completion, the Defendant would immediately sell the property, obtain financing from the proceeds and purchase another fixer-upper chosen by the Plaintiff.” In addition, “Defendant would transfer one-half ownership of the new property to the Plaintiff and full cooperate in continuing the business venture.”

“After Plaintiff’s full performance, the Defendant – without legal justification – refused to sell the property or transfer the promised ownership share.” Defendant alleges the following damages in support of the breach of contract cause of action: (1) “Defendant’s breach caused profound and ongoing harm to the Plaintiff, including contractual and ownership right despite complete performance,” (2) “[m]issed professional opportunities during the real-estate boom, despite Plaintiff’s marketing and management expertise,” (3) “[i]nterruption of education and resulting financial and psychological damage,” and (4) “[i]solation and emotional distress caused by financial hardship during a critical life stage for career and family formation.”

The allegation above is sufficient to state a cause of action for breach of oral agreement. The motion for judgment on the pleadings is DENIED as to the first cause of action for breach of oral contract.

		2. Promissory and Constructive Fraud a. Statute of Limitations “A cause of action for fraud accrues when the aggrieved party discovers the facts constituting the fraud.” (Austin v. Medicis (2018) 21 Cal.App.5th 577, 588.) “At that point, the plaintiff has three years to bring an action.” (Id. [citing Code Civ. Proc., § 338, subd. (d)].) For the same reasons discussed above, the Court is unable to determine whether Plaintiff’s cause of action for promissory and constructive fraud cause of action is barred by the applicable statute of limitations. b. Elements of Promissory Fraud “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “ ‘Promissory fraud’ is a subspecies of the action for fraud and deceit.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud.” (Ibid.) “An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 [citing Chelini v. Nieri (1948) 32 Cal.2d 480, 487, 196 P.2d 915 (“tort of deceit” adequately pled where plaintiff alleges “defendant intended to and did induce plaintiff to employ him by
--	--	--

	making promises ... he did not intend to (since he knew he could not) perform” (fn. omitted)).) “In such cases, the plaintiff’s claim does not depend upon whether the defendant’s promise is ultimately enforceable as a contract.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) “If it is enforceable, the [plaintiff] ... has a cause of action in tort as an alternative at least, and perhaps in some instances in addition to his cause of action on the contract.” (Ibid.) “Recovery, however, may be limited by the rule against double recovery of tort and contract compensatory damages.” (Ibid.) Here, the Court finds that Plaintiff has not sufficiently stated a cause of action for promissory fraud. Plaintiff has not alleged any “knowledge of falsity” or “intent to defraud.” There are no allegations that Defendant knew the falsity of her misrepresentations or intended to defraud Plaintiff. The motion for judgment on the pleadings is GRANTED as to the second cause of action for promissory fraud WITH LEAVE TO AMEND. c. Elements of Constructive Fraud “The elements of the cause of action for constructive fraud are: (1) fiduciary relationship; (2) nondisclosure (breach of fiduciary duty); (3) intent to deceive, and (4) reliance and resulting injury.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn. 14.) “Actual reliance and causation of injury must be shown.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh’g (Feb. 27, 2014).) “Unlike actual fraud, constructive fraud depends on the existence of a fiduciary relationship of some kind, and this must be alleged.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 516–517.) “Constructive fraud is a unique species of fraud applicable only to a fiduciary
--	---

		or confidential relationship.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1131, as modified on denial of reh'g (Feb. 27, 2014).) “Constructive fraud arises on a breach of duty by one in a confidential or fiduciary relationship to another which induces justifiable reliance by the latter to his prejudice.” (Ibid.) “A confidential relationship exists when one party gains the confidence of the other and purports to act or advise with the other’s interest in mind.” (Younan v. Equifax Inc. (1980) 111 Cal.App.3d 498, 517, fn 15.) As stated above, Plaintiff has not alleged the Defendant’s intent to deceive at the time of the nondisclosure. Additionally, Plaintiff has not alleged the requisite fiduciary relationship between Plaintiff and Defendant. The motion for judgment on the pleadings is GRANTED as to the second cause of action for constructive fraud WITHOUT LEAVE TO AMEND.
106	Saldarriaga vs. Javahery 24-01373839	Plaintiff/ Cross-Defendant, Defendant/ Cross-Complainant Daniel Toledo (“Toledo”) moves pursuant to Code of Civil Procedure section 877.6(a)(1) for a determination that the settlement reached between Daniel Toledo and Evelyn Martinez, Maite Saldarriaga, and Brandon Rodriguez was made in good faith. Toledo also asks the Court to bar all present and future parties to this action from making claims against Daniel Toledo for equitable comparative contribution, or partial or comparative indemnity, based on comparative indemnity, based upon comparative negligence or comparative fault. The determination of a good faith settlement with one or more tortfeasors or co-obligors is governed by Code of Civil Procedure section 877.6. Pursuant to Code of Civil Procedure section 877.6(a)(2):